The Prohibition and Censorship of Books

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THE PROHIBITION AND CENSORSHIP OF BOOKS.

Apostolic Constitution Officiorum ac Munerum, January 25, 1897.

Of all the official duties which We are bound most carefully and most diligently to fulfill in this supreme position of the apostolate, the chief and principal duty is to watch assiduously and earnestly to strive that the integrity of Christian faith and morals may suffer no diminution. And this, more than at any other time, is especially necessary in these days, when men's minds and characters are so unrestrained that almost every doctrine which Jesus Christ, the Savior of mankind, has committed to the custody of His Church for the welfare of the human race, is daily called into question and doubt. In this warfare, many and varied are the stratagems and hurtful devices of the enemy; but most perilous of all is the uncurbed freedom of writing and publishing noxious literature. Nothing can be conceived more pernicious, more apt to defile souls, through its contempt of religion, and its manifold allurements to sin. Wherefore the Church, who is the custodian and vindicator of the integrity of faith and morals, fearful of so great an evil, has from an early date realized that remedies must be applied against this plague; and for this reason she has ever striven, as far as lay in her power, to restrain men from the reading of bad books, as from a deadly poison. The early days of the Church were witnesses to the earnest zeal of St. Paul in this respect; and every subsequent age has witnessed the vigilance of the Fathers, the commands of the bishops, and the decrees of Councils in a similar direction.

Historical documents bear special witness to the care and diligence with which the Roman Pontiffs have vigilantly endeavored to prevent the unchecked spread of heretical writings detrimental to the public. History is full of examples. Anastasius I solemnly condemned the more dangerous writings of Origen, Innocent I those of Pelagius, Leo the Great all the works of the Manicheans. The decretal letters, opportunely issued by Gelasius, concerning books to be received and rejected, are well known. And so, in the course of centuries, the Holy See condemned the pestilent writings of the Monothelites, of Abelard, Marsilius Patavinus, Wycliff, and Huss.

In the fifteenth century, after the invention of the art of printing, not only were bad publications which had already appeared condemned, but precautions began to be taken against the publication of similar works in the future. These prudent measures were called for by no slight cause, but rather by the need of protecting the public morals and welfare at the time; for too many had rapidly perverted into a mighty engine of destruction an art excellent in itself, productive of immense advantages, and naturally destined for the advancement of Christian culture. Owing to the rapid process of publication, the great evil of bad books had been multiplied and accelerated. Wherefore Our predecessors, Alexander VI and Leo X, most wisely promulgated certain definite laws, well suited to the character of the times, in order to restrain printers and publishers within the limits of their duty.

The tempest soon became more violent, and it was necessary to check the contagion of heresy with still more vigilance and severity. Hence Leo X, and afterwards Clement VII, severely prohibited the reading or retaining of the books of Luther. But as, owing to the unhappy circumstances of that epoch, the foul flood o f pernicious in all directions, there appeared to be need of a more complete and efficacious remedy. This remedy Our predecessor, Paul IV, was the first to employ, by opportunely publishing a list of books and other writings against which the faithful should be warned. A little later the Council of Trent took steps to restrain the ever-growing incense of writing and reading by a new measure. At its command and desire, certain chosen prelates and theologians not only applied themselves to increasing and perfecting the Index which Paul IV. had published, but also drew up certain rules to be observed in the publishing, reading, and use of books; to which rules Pius IX added the sanction of his apostolic authority.

The interests of the public welfare, which had given rise to the Tridentine Rules, necessitated in the course of time certain alterations. For which reason the Roman Pontiffs, especially Clement VIII, Alexander VII, and Benedict XIV, mindful of the circumstances of the period and the dictates of prudence, issued several decrees calculated to elucidate these rules and to accommodate them to the times.

The above facts clearly prove that the chief care of the Roman Pontiffs has always been to protect civil society from erroneous beliefs and corrupt morals, the twin causes of the decline and ruin of States, which commonly owes its origin and its progress to bad books. Their labors were not unfruitful, so long as the divine law regulated the commands and prohibitions of civil government, and the rulers of States acted in unison with the ecclesiastical authority.

Every one is aware of the subsequent course of events. As circumstances and men's minds gradually altered, the Church, with her wonted prudence, observing the character of the period, took those steps which

appeared most expedient and best calculated to promote the salvation of men. Several prescriptions of the rules of the Index, which appeared to have lost their original opportuneness, she either abolished by decree, or, with equal gentleness and wisdom, permitted them to grow obsolete. In recent times, Pius IX, in a letter to the archbishops and bishops of the States of the Church, considerably mitigated Rule X. Moreover, on the eve of the Vatican Council, he instructed the learned men of the preparatory commission to examine and revise all the rules of the Index, and to advise how they should be dealt with. They unanimously decided that the rules required alteration; and several of the Fathers of the Council openly professed their agreement with this opinion and desire. A letter of the French bishops exists urging the necessity of immediate action in "republishing the rules and the whole scheme of the Index in an entirely new form, better suited to our times and easier to observe." A similar opinion was expressed at the same time by the bishops of Germany, who definitely petitioned that "the rules of the Index might be submitted to a fresh revision and a rearrangement." With these bishops many bishops of Italy and other countries have agreed.

Taking into account the circumstances of our times, the conditions of society, and popular customs, all these requests are certainly justified and in accordance with the maternal affection of Holy Church. In the rapid race of intellect, there is no field of knowledge in which literature has not run riot, hence the daily inundation of most pernicious books. Worst of all, the civil laws not only connive at this serious evil but allow it the widest license. Thus, on the one hand, many minds are in a state of anxiety; whilst, on the other, there is unlimited opportunity for every kind of reading.

Believing that some remedy ought to be applied to these evils, We have thought well to take two steps which will supply a certain and clear rule of action in this matter. First, to diligently revise the Index of books forbidden to be read; and We have ordered this revised edition to be published when complete. Secondly, We have turned Our attention to the rules themselves, and have determined, without altering their nature, to make them somewhat milder, so that it cannot be difficult or irksome for any person of good-will to obey them. In this we have not only followed the example of Our predecessors, but imitated the maternal affection of the Church, who desires nothing more earnestly than to show herself indulgent, and, in the present, as in the past, ever cares for her children in such a manner as gently and lovingly to have regard to their weakness.

Wherefore, after mature deliberation, and having consulted the Cardinals of the Sacred Congregation of the Index, We have decided to issue the following General Decrees appended to this Constitution, and the aforesaid Sacred Congregation shall, in the future, follow these exclusively, and all Catholics throughout the world shall strictly obey them. We will that they alone shall have the force of law, abrogating the rules published by order of the Sacred Council of Trent, and the Observations, Instructions, Decrees, Monita, and all other statutes and commands whatsoever of Our predecessors, with the sole exception of the Constitution Sollicita et provida of Benedict XIV., which We will to retain in the future the full force which it has hitherto had.

GENERAL DECREES CONCERNING THE PROHIBITION AND CENSORSHIP OF BOOKS.

ARTICLE I.

Of the Prohibition of Books.

CHAPTER I.

Of the Prohibited Books of Apostates, Heretics, Schismatics, and Other Writers.

1. All books condemned before the year 1600 by the Sovereign Pontiffs, or by CEcumenical Councils, and which are not recorded in the new Index, must be considered as condemned in the same manner as formerly, with the exception of such as are permitted by the present General Decrees.

2. The books of apostates, heretics, schismatics, and all writers whatsoever, defending heresy or schism, or in any way attacking the foundations of religion, are altogether prohibited.

3. Moreover, the books of non-Catholics, ex professo treating of religion, are prohibited, unless they clearly contain nothing contrary to Catholic faith.

4. The books of the above-mentioned writers, not treating ex professo of religion, but only touching incidentally upon the truths of faith, are not to be considered as prohibited by ecclesiastical law, unless proscribed by special decree.

CHAPTER II.

Of Editions of the Original Text of Holy Scripture and of Versions not in the Vernacular.

5. Editions of the original text and of the ancient Catholic versions of Holy Scripture, as well as those of the Eastern Church, if published by non-Catholics, even though apparently edited in a faithful and complete manner, are allowed only to those engaged in theological and biblical studies, provided also that the dogmas of Catholic faith are not impugned in the prolegomena or annotations.

6. In the same manner, and under the same conditions, other versions of the Holy Bible, whether in Latin or in any other dead language, published by non-Catholics, are permitted.

CHAPTER III.

Of Vernacular Versions of Holy Scripture.

7. As it has been clearly shown by experience that, if the Holy Bible in the vernacular is generally permitted without any distinction, more harm than utility is thereby caused, owing to human temerity: all versions in the vernacular, even by Catholics, are altogether prohibited, unless approved by the Holy See, or published, under the vigilant care of the bishops, with annotations taken from the Fathers of the Church and learned Catholic writers.

8. All versions of the Holy Bible, in any vernacular language, made by non-Catholics are prohibited; and especially those published by the Bible societies, which have been more than once condemned by the Roman Pontiffs, because in them the wise laws of the Church concerning the publication of the sacred books are entirely disregarded.

Nevertheless, these versions are permitted to students of theological or biblical science, under the conditions laid down above (No. 5).

CHAPTER IV.

Of Obscene Books.

9. Books which professedly treat of, narrate, or teach lewd or obscene subjects are entirely prohibited, since care must be taken not only of faith but also of morals, which are easily corrupted by the reading of such books.

10. The books of classical authors, whether ancient or modern, if disfigured with the same stain of indecency, are, on account of the elegance and beauty of their diction, permitted only to those who are justified on account of their duty or the function of teaching; but on no account may they be placed in the hands of, or taught to, boys or youths, unless carefully expurgated.

CHAPTER V.

Of Certain Special Kinds of Books.

11. Those books are condemned which are derogatory to Almighty God, or to the Blessed Virgin Mary, or the Saints, or to the Catholic Church and her worship, or to the sacraments, or to the Holy See. To the same condemnation are subject those works in which the idea of the inspiration of Holy Scripture is perverted, or its extension too narrowly limited. Those books, moreover, are prohibited which professedly revile the ecclesiastical hierarchy, or the clerical or religious state.

12. It is forbidden to publish, read, or keep books in which sorcery, divination, magic, the evocation of spirits, and other superstitions of this kind are taught or commended.

13. Books or other writings which narrate new apparitions, revelations, visions, prophecies, miracles, or which introduce new devotions, even under the pretext of being private ones, if published without the legitimate permission of ecclesiastical superiors, are prohibited.

14. Those books, moreover, are prohibited which defend as lawful, dueling, suicide, or divorce; which treat of Freemasonry, or other societies of the kind, teaching them to be useful, and not injurious to the Church and to Society; and those which defend errors proscribed by the Apostolic See.

CHAPTER VI.

Of Sacred Pictures and Indulgences.

15. Pictures, in any style of printing, of Our Lord Jesus Christ, the Blessed Virgin Mary, the angels and saints, or other servants of God, which are not conformable to the sense and decrees of the Church, are entirely forbidden. New pictures, whether produced with or without prayers annexed, may not be published without permission of ecclesiastical authority.

16. It is forbidden to all to give publicity in any way to apocryphal indulgences, and such as have been proscribed or revoked by the Apostolic See. Those which have already been published must be withdrawn from the hands of the faithful.

17. No books of indulgences, or compendiums, pamphlets, leaflets, etc., containing grants of indulgences, may be published without permission of competent authority.

CHAPTER VII.

Of Liturgical Books and Prayer Books.

18. In authentic editions of the Missal, Breviary, Ritual, Ceremonial of Bishops, Roman Pontifical, and other liturgical books approved by the holy Apostolic See, no one shall presume to make any change whatsoever; otherwise such new editions are prohibited,

19. No litanies except the ancient and common litanies contained in the breviaries, missals, pontificals, and rituals, as well as the Litany of Loretto, and the Litany of the Most Holy Name of Jesus already approved by the Holy See may be published without the examination and approbation of the ordinary.

20. No one, without license of legitimate authority, may publish books or pamphlets of prayers, devotions, or of religious, moral, ascetic, or mystic doctrine and instruction, or others of like nature, even though apparently conducive to the fostering of piety among Christian people; otherwise they are lo be considered as prohibited.

CHAPTER VIII.

Of Newspapers and Periodicals.

21. Newspapers and periodicals which designedly attack religion or morality are to be held as prohibited not only by the natural but also by the ecclesiastical law. Ordinaries shall take care, whenever it be necessary, that the faithful shall be warned against the danger and injury of reading of this kind.

22. No Catholics, particularly ecclesiastics, shall publish anything in newspapers or periodicals of this

character, unless for some just and reasonable cause.

CHAPTER IX.

Of Permission to Read and Keep Prohibited Books.

23. Those only shall be allowed to read and keep books prohibited, either by special decrees or by these General Decrees, who shall have obtained the necessary permission, either from the Apostolic See or from its delegates.

24. The Roman Pontiffs have placed the power of granting licenses for the reading and keeping of prohibited books in the hands of the Sacred Congregation of the Index. Nevertheless the same power is enjoyed both by the Supreme Congregation of the Holy Office, and by the Sacred Congregation of Propaganda for the regions subject to its administration. For the city of Rome this power belongs also to the Master of the Sacred Apostolic Palace.

25. Bishops and other prelates with quasi-episcopal jurisdiction may grant such license for individual books, and in urgent cases only. But if they have obtained from the Apostolic See a general faculty to grant permission to the faithful to read and keep prohibited books, they must grant this only with discretion and for a just and reasonable cause.

26. Those who have obtained apostolic faculties to read and keep prohibited books may not on this account read and keep any books whatsoever or periodicals condemned by the local ordinaries, unless in the apostolic indult express permission be given to read and keep books by whomsoever prohibited. And those who have obtained permission to read prohibited books must remember that they are bound by grave precept to keep books of this kind in such a manner that they may not fall into the hands of others.

CHAPTER X.

Of the Denunciation of Bad Books.

27. Although all Catholics, especially the more learned, ought to denounce pernicious books either to the bishops or to the Holy See, this duty belongs more especially to apostolic nuncios and delegates, local ordinaries, and rectors of universities.

28. It is expedient, in denouncing bad books, that not only the title of the book be expressed, but also, as far as possible, the reasons be explained why the book is considered worthy of censure. Those to whom the denunciation is made will remember that it is their duty to keep secret the names of the denouncers.

29. Ordinaries, even as delegates of the Apostolic See, must be careful to prohibit evil books or other writings published or circulated in their dioceses, and to withdraw them from the hands of the faithful. Such works and writings should be referred by them to the judgment of the Apostolic See as appear to require a more careful examination, or concerning which a decision of the supreme authority may seem desirable in order to procure a more salutary effect.

ARTICLE II.

Of the Censorship of Books.

CHAPTER I.

Of the Prelates entrusted with the Censorship of Books.

30. From what has been laid down above (No. 7), it is sufficiently clear what persons have authority to approve or permit editions and translations of the Holy Bible.

31. No one shall venture to republish books condemned by the Apostolic See. If, for a grave and reasonable cause, any particular exception appears desirable in this respect, this can only be allowed on obtaining beforehand a license from the Sacred Congregation of the Index and observing the conditions prescribed by it.

32. Whatsoever pertains in any way to causes of beatification and canonization of the servants of God may not be published without the approval of the Congregation of Sacred Rites.

33. The same must be said of collections of decrees of the various Roman congregations: such collections may not be published without first obtaining the license of the authorities of each congregation, and observing the conditions by them prescribed.

34. Vicars apostolic and missionaries apostolic shall faithfully observe the decrees of the Sacred Congregation of Propaganda concerning the publication of books.

35. The approbation of books of which the censorship is not reserved by the present decrees either to the Holy See or to the Roman congregations belongs to the ordinary of the place where they are published.

36. Regulars must remember that, in addition to the license of the bishop, they are bound by a decree of the Sacred Council of Trent to obtain leave for publishing any work from their own superior. Both permissions must be printed either at the beginning or at the end of the book.

37. If an author, living in Rome, desires to print a book, not in the city of Rome but elsewhere, no other approbation is required beyond that of the Cardinal Vicar and the Master of the Apostolic Palace.

CHAPTER II.

Of the Duty of Censors in the Preliminary Examination of Books.

38. Bishops whose duty it is to grant permission for the printing of books shall take care to employ in the examination of them men of acknowledged piety and learning concerning whose faith and honesty they may feel sure that they mil show neither favor nor ill-will, but, putting aside all human affections, will look only to the glory of God and the welfare of the people.

39. Censors must understand that, in the matter of various opinions and systems, they are bound to judge

with a mind free from all prejudice, according to the precept of Benedict XIV. Therefore they should put away all attachment to their particular country, family, school, or institute, and lay aside all partisan spirit. They must keep before their eyes nothing but the dogmas of Holy Church, and the common Catholic doctrine as contained in the decrees of General Councils, the Constitutions of the Roman Pontiffs, and the unanimous teaching of the Doctors of the Church.

40. If, after this examination, no objection appears to the publication of the book, the ordinary shall grant to the author, in writing and without any fee whatsoever, a license to publish, which shall be printed either at the beginning or at the end of the work.

CHAPTER III.

Of the Books to be Submitted to Censorship.

41. All the faithful are bound to submit to preliminary ecclesiastical censorship at least those books which treat of Holy Scripture, sacred theology, ecclesiastical history, canon law, natural theology, ethics, and other religious or moral subjects of this character; and in general all writings specially concerned with religion and morality.

42. The secular clergy, in order to give an example of respect towards their ordinaries, ought not to publish books, even when treating of merely natural arts and sciences, without their knowledge. They are also prohibited from undertaking the management of newspapers or periodicals without the previous permission of their ordinaries.

CHAPTER IV.

Of Printers and Publishers of Books.

43. No book liable to ecclesiastical censorship may be printed unless it bear at the beginning the name and surname of both the author and the publisher, together with the place and year of printing and publishing. If in any particular case, owing to a just reason, it appears desirable to suppress the name of the author, this may be permitted by the ordinary.

44. Printers and publishers should remember that new editions of an approved work require a new approbation; and that an approbation granted to the original text does not suffice for a translation into another language.

45. Books condemned by the Apostolic See are to be considered as prohibited all over the world, and into whatever language they may be translated.

46. Booksellers, especially Catholics, should neither sell, lend, nor keep books professedly treating of obscene subjects. They should not keep for sale other prohibited books, unless they have obtained leave through the ordinary from the Sacred Congregation of the Index; nor sell such books to any person whom they do not prudently judge to have the right to buy them.

CHAPTER V.

Of Penalties Against Transgressors of the General Decrees.

47. All and every one knowingly reading, without authority of the Holy See, the books of apostates and heretics defending heresy; or books of any author which are by name prohibited by Apostolic Letters; also those keeping, printing, and in any way defending such works; incur ipso facto excommunication reserved in a special manner to the Roman Pontiff.

48. Those who, without the approbation of the ordinary, print, or cause to be printed, books of Holy Scripture, or notes or commentaries on the same, incur ipso facto excommunication, but not reserved.

49. Those who transgress the other prescriptions of these General Decrees shall, according to the gravity of their offence, be seriously warned by the bishop, and, if it seem expedient, may also be punished by canonical penalties.

We decree that these presents and whatsoever they contain shall at no time be questioned or impugned for any fault of subreption, or obreption, or of Our intention, or for any other defect whatsoever; but are and shall be ever valid and efficacious, and to be inviolably observed, both judicially and extra-judicially, by all of whatsoever rank and pre-eminence. And We declare to be invalid and of no avail, whatsoever may be attempted knowingly or unknowingly contrary to these, by any one, under any authority or pretext whatsoever; all to the contrary notwithstanding.

And We will that the same authority be attributed to copies of these Letters, even if printed, provided they be signed by the hand of a notary, and confirmed by the seal of some one in ecclesiastical dignity, as to the indication of Our will by the exhibition of these presents.

No man, therefore, may infringe or rashly venture to contravene this document of Our constitution, ordination, imitation, derogation, and will. If any one shall so presume, let him know that he will incur the wrath of Almighty God, and of the blessed apostles Peter and Paul.

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